

Tentative Rulings for August 13, 2026
Department 501

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

23CECG03986	<i>Jillian Larsen v. The County of Fresno</i> is continued to Thursday, September 10, 2026, at 3:30 p.m. in Department 501.
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Tentative Rulings for Department 501

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(20)

Tentative Ruling

Re: **Gallardo v. Jedahl**
Superior Court Case No. 26CECG00465

Hearing Date: August 13, 2026 (Dept. 501)

Motion: Commissioner Gary L. Green's Demurrer to First Amended Complaint

Tentative Ruling:

To sustain Commissioner Green's demurrer to the First Amended Complaint without leave to amend. (Code Civ. Proc., § 430.10, subd. (e).)

Explanation:

In this action plaintiff Raul Gallardo asserts one cause of action for open book account, seeking \$15,000,000 in damages, against Commissioner Gary L. Green. The claim against Commissioner Green arises from his actions as a judicial officer in a separate legal proceeding in which plaintiff's public defender, defendant Hillary Liljedahl, stipulated to Commissioner Green presiding over plaintiff's criminal child support case. Plaintiff alleges that Liljedahl's stipulation was without plaintiff's consent or authorization. In addition to the common count, plaintiff asserts a cause of action for fraud against Liljedahl only.

Commissioner Green's demurrer will be sustained without leave to amend for two reasons. First, this court lacks jurisdiction to challenge actions by a judicial officer in a separate action.

"[A] public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability." (Govt. Code, § 815.2, subd. (b)). "Absolute judicial immunity 'insulates judges from charges of erroneous acts or irregular action.'" (*Burton v. Il Capital Mgmt.* (9th Cir. 2014) 753 F.3d 954, 959, quoting *In re Castillo* (9th Cir. 2002) 297 F.3d 940, 947.) "It bars civil actions against judges for acts performed in the exercise of their judicial functions and applies to all judicial determinations, including those rendered in excess of the judge's jurisdiction, no matter how erroneous or even malicious or corrupt they may be. (Citations omitted)." (*Howard v. Drapkin* (1990) 222 Cal.App.3d 843, 851; see also *Castillo*, 297 F.3d at p. 947 quoting *Forrester v. White* (1988) 484 U.S. 219, 225.) Judicial immunity extends to all civil suits arising out of a judge's judicial functions (*Mireles v. Waco* (1991) 502 U.S. 9, 11), which means it applies to damages suits and "actions for declaratory, injunctive and other equitable relief." (*Moore v. Brewster* (9th Cir. 1996) 96 F.3d 1240, 1244, superseded by statute on other grounds.) Judicial immunity is an absolute immunity from suit. (See *Mitchell v. Forsyth* (1985) 472 U.S. 511, 526.)

Plaintiff's discussion of Code of Civil Procedure section 664.6 and related cases are irrelevant. Section 664.6 has nothing to do with judicial immunity. It concerns court's jurisdiction to enforce the terms of settlement agreements in civil actions. These

authorities have no bearing here. The opposition cites to no authority supportive of plaintiff's position that judicial decisions such as that at issue here can be collaterally attacked in a separate action.

Additionally, the cause of action for open book account seeks \$15,000,000 in damages. "[A] plaintiff must allege facts demonstrating or excusing compliance with the claim presentation requirement." (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1243.) "Otherwise, his complaint is subject to a general demurrer for failure to state facts sufficient to constitute a cause of action." (*Ibid.*) Under Government Code section 945.4, "no suit for money or damages may be brought against a public entity ... until a written claim therefore has been presented to the public entity and has been acted upon by the Board, or has been deemed to be have been denied by the Board."

The claim must be submitted to the “clerk, secretary, or auditor” or to the governing body of the public (Gov. Code, § 915) within six months of accrual of the cause of action (Gov. Code, § 911.2). The claim filing requirement applies to any lawsuit for damages against the public entity or its employees. (Gov. Code, §§ 911.2, 950.2, 945.4.)

Here, the FAC does not allege compliance with the Tort Claims Act, and the opposition does not address the issue, indicating that there is no likely effective amendment that can be made to save the claim.

Because Commissioner Green is entitled to judicial immunity, the demurrer is sustained without leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/12/26
(Judge's initials) (Date)

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Tentative Ruling

Re: **Ron Miller Enterprises Inc. v. Alex Delamora**
Superior Court Case No. 23CECG00856

Hearing Date: August 13, 2026 (Dept. 501)

Motion: Plaintiff's Petition to Exceed Fee Schedule

Tentative Ruling:

To grant in the reduced amount of \$10,000. (Super. Ct. Fresno County, Local Rules, Appendix A1, subd. (A)(3).) Counsel should file an amended proposed default judgment (Judicial Council Form JUD-100) consistent with this ruling within ten days of service of the minute order by the clerk.

Explanation:

The court has reviewed plaintiff's petition consistent with Fresno Superior Court Local Rules Appendix A1, subdivision (A)(3). Plaintiff's counsel has demonstrated that counsel's efforts and time in this matter warrants an award exceeding the fee schedule.

The court previously continued this matter for counsel to provide a supplemental declaration demonstrating hours worked solely in this matter and reducing a five percent overhead charge. Counsel provided the supplemental declaration which did remove the overhead charges and some, but not all, fees associated with other matters. Having reviewed counsel's billing, the court is inclined to allow for attorney's fees in the amount of \$10,000.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/12/26
(Judge's initials) (Date)